

May 17, 2016

Approved as to
form only:

ORDINANCE NO. _____

302
Date: 5/17/2016

**ENTITLED: "AN ORDINANCE AMENDING VARIOUS SECTIONS OF
CHAPTER 9.24, WEAPONS, OF TITLE 9, PUBLIC PEACE
AND WELFARE, OF THE CODE OF THE CITY OF
CHEYENNE, WYOMING."**

**BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE,
WYOMING:**

Section 1. That various sections of Chapter 9.24, Weapons, of Title 9, Public Peace and Welfare, of the code of the city of Cheyenne, Wyoming, are hereby amended as set out in this ordinance. Sections currently existing within Chapter 9.24 not set out within this ordinance remain unchanged.

9.24.010 Definitions.

"Air gun" means any type of weapon that expels a projectile by means of compressed air, other gases, or springs, and is commonly referred to as a pellet gun or BB gun, depending upon the type of projectile discharged. The phrase "air gun" does not include firearms, as defined in this section.

"Firearm" means any weapon which ~~is designed to expel a projectile by the action of expanding gases~~ will or is designed to expel a projectile by the action of explosive gases. "Firearm" shall not include any fully automatic weapon, any weapon designed to fire a rocket propelled grenade, or any explosive projectile.

"Paintball gun" means any type of device commonly used in the game of paintball that expels a globular, paint-filled capsule by means of compressed air, other gases, or springs. The phrase "paintball gun" does not include firearms, as defined in this section.

"Range" includes the word "gallery" and shall mean any public or private facility at which firearm, air gun, paintball gun, bow, or crossbow training, practice, or both, is conducted under controlled circumstances. Ranges are intended to encourage safe handling of these devices and require that procedures and structures are in place to prevent the projectiles discharged from such devices from causing damage to persons or property, both inside and outside the confines of the range. Appropriate procedures and structures include, but are not limited to, discharging any projectile at a backstop constructed of materials capable of stopping the discharged projectile, such that no projectile may exit an enclosed target area. Any indoor range utilized for discharge of firearms shall be sound proof and utilize an effective bullet trap and negative air pressure mechanism that ensures the air in the shooter's personal breathing zone remains clean at all times.

"Weapon" means, but is not limited to, a firearm, explosive, incendiary material, motorized vehicle, animal, or other device, instrument, material, or substance, which in the

manner used or intended to be used, is reasonably capable of producing death or bodily injury.

9.24.030 Discharging firearms or air guns prohibited.

- A. No person shall discharge or explode within the city any rifle, revolver, or pistol, any air gun or other gun discharging BB or other size shot or firearms of any description or any other combustible or explosive material, unless such discharge occurs within the confines of an indoor range.
- B. No minor shall wear or carry any air gun, paintball gun, bow, or crossbow in public and not within a range. No minor shall discharge any projectile from an air gun, paintball gun, bow, or crossbow unless under the supervision of an adult. No person shall discharge any projectile from an air gun, paintball gun, bow, or crossbow, unless such discharge occurs within a range utilizing procedures and structures to prevent the discharged projectiles from causing damage to persons or property, both inside and outside the confines of the range.
- C. It shall be a violation of the provisions of this chapter for any person to discharge from an air gun, paintball gun, bow, crossbow, or firearm any projectile that escapes the confines of the range in which the projectile was discharged, whether or not the discharged projectile causes damage to persons or property.

~~9.24.040 Carrying concealed weapons~~ ~~Carrying weapons openly with intent to inflict injury.~~

~~No person shall wear or carry concealed any knife, the blade of which exceeds four inches in length, any dirk, dagger, sword in cane, slingshot, revolver, pistol or any other dangerous or deadly weapon. No person shall openly wear or carry any such weapon with the intent or avowed purpose of killing or injuring any person.~~

~~9.24.050 Possession of blackjacks and switch knives prohibited.~~

~~No person shall possess, own, carry, wear, buy or sell within the city any weapons commonly called blackjacks, saps, brass knucks or switch knives.~~

~~9.24.080 Carrying or use of slingshots prohibited.~~

~~No person shall carry a contrivance commonly known as a slingshot or shall use the same for the purpose of throwing any stone, pebble or other missile.~~

~~9.24.130 Pistols Sale and delivery.~~

~~When any sale of a pistol, the overall length of which is less than six inches, is made under this chapter, forty eight (48) hours must elapse between the time of the sale and the time of~~

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~~delivery to the purchaser. All pistols sold shall be securely wrapped and unloaded when delivered to the purchaser.~~

9.24.140 ~~Pistols-Firearms—Display.~~

~~No person or firearms dealer shall display any firearm pistol with an overall length of less than six inches in any street-facing display window, nor shall any pistol be displayed in show windows after normal business hours or on Sunday without security provisions to ensure such firearms are secure from theft after the dealer's normal business hours.~~

Section 2. That this ordinance shall be in full force and effect upon its approval and publication.

FIRST READING:

SECOND READING:

THIRD AND FINAL READING:

Richard L. Kaysen, Mayor

(SEAL)

Attest:

Carol Intlekofer, City Clerk

Publish: Wyoming Tribune Eagle